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2026:PHHC:087366



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33630-2026
Decided On: 12.06.2026**

BALDEV SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL**Present:** Mr. NS Swaich, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.0227 dated 12.05.2026 under Sections 115(2), 109, 333, 118(1), 351(2), 191(3), 190, 61(2) of BNS, 2023 registered at Police Station Samrala, Police District Khanna.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case and that no specific injury on any vital body part has been attributed to him. He further contends that the injuries alleged to be dangerous to life have been attributed to the co-accused, Harman Singh. He undertakes, on behalf of the petitioner, that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State/Complainant

On the asking of Court, Mr. Satjot Singh, AAG Punjab for the respondent/State and Mr. Amandeep Singh Rai, Advocate for the complainant, accept notice, whose power of attorney is taken on record, oppose the prayer made by learned counsel for the petitioner. However, they could not controvert the submissions made by learned counsel for the petitioner and, rather candidly, submitted that the injury declared to be dangerous to life has been attributed to the co-accused, Harman Singh, who allegedly inflicted two iron rod blows on the head of the injured.

3. Analysis

In the present case, it is not disputed that the occurrence stems from a dispute between close family members, namely a real paternal uncle (chacha) and his nephew. The injury specifically attributed to the present petitioner, Baldev Singh, is stated to have been inflicted on the left hand of the complainant, whereas the injuries on the vital part of the body, i.e. the head, have been attributed to co-accused Harman Singh son of Binder Singh.

It is also noteworthy that a co-accused has already been granted the concession of anticipatory bail by this Court vide order dated 11.06.2026 passed in CRM-M-33572-2026 titled ***Gurmukh Singh v. State of Punjab***. Furthermore, the petitioner is stated to be a person of clean antecedents and is not involved in any other criminal case.

Keeping in view the nature of the allegations, the role attributed to the petitioner, the parity with the co-accused who has already been granted anticipatory bail, and the fact that the petitioner has expressed his willingness to

join and cooperate with the investigation, this Court is of the considered opinion that custodial interrogation of the petitioner is not warranted.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

12.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*